

**In the Supreme Court of Bangladesh**  
**High Court Division**  
 (Civil Revisional Jurisdiction)

**Present:**

**Mr. Justice Ashish Ranjan Das**  
**Civil Revision Case No. 3237 of 1995.**

In the matter of:

Md. Ishaque.

.....Plaintiff-appellant-Petitioner.

-Versus –

Additional Deputy Commissioner (Revenue),  
 Chittagong and others.

..... Defendant-Respondents-opposite parties.

None appears for the petitioner.

Mr. Md. Taifoor Kabir, D.A.G.

..... Defendant-Respondents-opposite parties.

**Heard on:19.08.2019 and Judgment**  
**on:20.08.2019.**

**Ashish Ranjan Das, J.:**

Plaintiff petitioner Md. Ishak brought Other Class Suit No. 48 of 1990 for declaration of title, confirmation of possession and partition and on transfer the learned Assistant Judge, Second Additional Court, Chittagong by his judgment dated 24.07.1991 dismissed the suit.

Being aggrieved the plaintiff preferred Other Class Appeal number 43 of 1991 in the Court of District Judge, Chittagong and on transfer the learned Subordinate Judge, Second Commercial Court, Chittagong by his judgment dated 23.11.1994 dismissed

the appeal and thus the decree of dismissal of the trial court remained upheld.

Being further aggrieved the plaintiff Md. Ishak brought this civil revisional application under section 115(1) of the Code of Civil Procedure.

I have heard the learned Advocate for the respective parties and perused the entire record.

Short fact that could be gathered from the file is that the suit properties belong to Tarok Chandra, Nabin Chandra, Rajmohon, Jogmohon, Ray Mohon and few others. At the demise of Ray Mohon his share devolved upon sisters Monoroma and Sarojini. The latter sold the suit land to the plaintiffs and inducted into possession. Subsequently they came to know that the properties were enlisted as vested properties through V.P. Case No. 124 /66-67. The plaintiffs moved for realising the properties from the list of vested properties but failed. Hence was the suit.

The defendants No. 5 and 18 separately contested the suit. The first set of defendants were the various officials of the government for the vested properties. The case of the defendant No. 18 was that C.S. recorded tenant Nabin Chandra left 03

(three) daughters Monorama, Giribala and Jogomaya. Jogomaya left son Aksay Kumar. He purchased share from Aksay and thus he got khas possession in 10.25 decimals of land. Upon assessment of evidences the learned Assistant Judge resolved that firstly the said female successors of the C.S. recorded tenants under law did not inherit any share and hence the deeds of transfer were not genuine and finally the plaintiff's and other persons claiming properties of the C.S. recorded tenants took no step to prove bonafide of those instruments of transfer. Thus the suit was dismissed and the findings and result were affirmed by the lower appellate court.

Admitted position is that those Hindu owners are no more in Bangladesh. It is the case of the opposite party government that they left the country for good leaving the properties properly unattended thus it became vested. The petitioner and other persons claiming fractions of share seem to have claimed their title from the female heirs of the recorded tenants. For example according to the petitioner share of Ray Mohon devolved upon her sister Monorama and Sarojini from whom the petitioner have purchased. But it is a matter of common understanding that in Hindu law sisters can not inherit brother's property. The

defendant No. 8 claim to have purchased share of Aksay Kumar son of Jogomaya another female heir.

Thus we are of the view that in any case the petitioner plaintiff could not prove their title by producing the legal evidences and thus we see that the lower appellate court committed no illegality by holding the suit dismissed.

As a result, the Rule is discharged.

No order as to costs.

Send down the Lower Court records at once.

(Mr. Justice Ashish Ranjan Das)

(Md. Atikur Rahman, A.B.O.)